

THE RIGHTS OF A WIFE

Marriage, Property, and Divorce

in Comparative Religious Perspective

A Short Comparative Study

A Note to the Reader

This short book looks at how a wife's rights within marriage — over property, financial support, consent, and divorce — have been understood across six major religious traditions. Two cautions are worth stating up front. First, every tradition discussed here contains real internal diversity: different schools of law, different historical periods, and different regional customs have produced different answers to the same questions, and reform movements within each tradition continue to debate them today. Second, textual teaching and lived practice are not always the same thing; a right granted on paper has not always been honored in custom, and custom has sometimes granted more than a text technically required. This book aims to describe fairly, not to rank traditions against one another or to settle disputes that adherents themselves continue to debate.

Chapter 1: Marriage as Contract, Covenant, or Sacrament

How a tradition frames marriage shapes what rights follow from it. Judaism and Islam both treat marriage substantially as a contract, which is part of why both traditions developed detailed written agreements — the ketubah and the marriage contract with mahr — spelling out specific financial obligations owed to the wife. Catholic Christianity treats marriage as a sacrament, a covenant understood as instituted by God and, historically, indissoluble except in narrow circumstances. Many Protestant traditions retain the covenantal language but allow divorce more readily. Hindu and Buddhist traditions have generally framed marriage less through the language of individual rights and more through the language of duty (dharma) and mutual obligation between spouses and their extended families, though modern civil law in India and elsewhere has since layered statutory rights on top of these older frameworks. Sikhism describes marriage (Anand Karaj) as a spiritual union of equals, a framing that has shaped its comparatively strong emphasis on gender equality within the relationship.

Chapter 2: Hinduism

Classical Hindu law texts, most famously the Manusmriti, describe extensive duties for a wife toward her husband and household, and these texts have historically been cited to justify limits on women's independent legal standing, including property ownership and remarriage. At the same time, Hindu tradition also developed the concept of streedhan — property, gifts, and jewelry considered to belong exclusively to the wife, over which her husband and in-laws traditionally had no claim, and which she could take with her even in the event of separation.

Modern Indian law has substantially reformed this picture. The Hindu Marriage Act (1955) and the Hindu Succession Act (1956, amended 2005) grant Hindu women statutory rights to divorce, maintenance, and equal inheritance that go considerably further than classical texts did, reflecting an ongoing negotiation between religious tradition and modern civil law that continues in Indian courts and legislatures today.

Chapter 3: Buddhism

Buddhism has no single marriage rite considered a religious sacrament; marriage is generally treated as a civil and social matter that the tradition blesses rather than one it constitutes. Early Buddhist ethical texts, such as the Sigalovada Sutta, describe marriage in terms of reciprocal duties — a husband is instructed to honor, provide for, and remain faithful to his wife, while a wife is instructed to manage the household well and remain faithful in turn — a framing scholars often describe as unusually reciprocal for its time, even though it still assumes a fairly traditional division of roles.

Because Buddhism leaves marriage law largely to secular or customary authority, a wife's concrete legal rights in Buddhist-majority societies — Sri Lanka, Thailand, Myanmar, and others — have depended heavily on local civil codes rather than on distinctly Buddhist religious law, and these codes vary considerably from country to country.

Chapter 4: Judaism

Jewish law addresses a wife's rights in unusual detail through the *ketubah*, a marriage document historically required before a wedding could proceed. The *ketubah* specifies financial obligations the husband owes his wife, including support during the marriage and a settlement due to her in the event of divorce or his death — a mechanism scholars generally view as protective, since it gave a wife an enforceable financial claim at a time when women often had few other independent legal protections.

A significant point of ongoing difficulty concerns divorce. Under traditional Jewish law, a husband must voluntarily grant his wife a *get* (a bill of divorce) for the divorce to be religiously recognized; a wife whose husband refuses becomes an *agunah* ('chained woman'), unable to remarry within the tradition. This has been a subject of sustained activism and rabbinic reform efforts — including prenuptial agreements designed to prevent it — across Orthodox, Conservative, and Reform communities, which differ in how they have addressed the problem.

Chapter 5: Christianity

New Testament teaching on marriage contains both a much-cited passage instructing wives to submit to their husbands (Ephesians 5) and, in the same passage, an instruction that husbands love their wives self-sacrificially, 'as Christ loved the church' — a pairing that different Christian traditions and theologians have read very differently, from a strict hierarchical model to a model of mutual, sacrificial submission between equals.

Historically, canon law in medieval Christian Europe limited a wife's independent legal and property rights considerably, an arrangement that secular law (such as the English doctrine of coverture) reinforced well into the modern era. Catholic teaching continues to treat valid sacramental marriage as indissoluble, permitting annulment rather than divorce in specific circumstances, while most Protestant denominations and Eastern Orthodoxy permit divorce more readily, particularly in cases of infidelity or abandonment. Contemporary Christian denominations differ widely — from complementarian views that retain distinct gender roles within marriage to egalitarian views that reject any hierarchy between spouses — and this remains an actively debated question within, rather than only between, Christian communities today.

Chapter 6: Islam

Islamic marriage law grants a wife several rights considered legally binding rather than merely customary. The *mahr* (dower) is a mandatory payment or gift from the husband to the wife at marriage, which becomes her personal property to use, save, or invest as she chooses; it is not a payment to her family. Classical Islamic law also entitles a wife to *nafaqa* (financial maintenance) from her husband regardless of her own wealth, and, notably, allows her to retain full ownership and control over her own property and earnings, which does not merge into shared marital property as it has historically done under some other legal systems.

Divorce rights differ by gender and by legal school: a husband traditionally initiates divorce through talaq, while a wife's paths include khula (a divorce she initiates, typically returning her mahr) or judicial divorce granted by a court for cause, such as harm or failure to provide maintenance. The relative accessibility of these paths for wives varies significantly across the major schools of Islamic law (Hanafi, Maliki, Shafi'i, Hanbali, Ja'fari) and across national legal systems, and has been a major focus of 20th- and 21st-century family law reform in many Muslim-majority countries, including expanded judicial divorce rights and restrictions on unilateral talaq.

Chapter 7: Sikhism

Sikh scripture and teaching place unusual explicit emphasis on the equality of women, a stance historically distinguished from some surrounding social practices in the region and period in which Sikhism developed. The Guru Granth Sahib rejects practices such as sati (widow immolation) and purdah (female seclusion) and describes marriage, through the Anand Karaj ceremony, as a union of two souls considered spiritually equal, encircling the scripture together as an expression of shared commitment.

Because Sikhism has comparatively little separate codified family law of its own, a Sikh wife's specific legal rights regarding property and divorce in practice are generally governed by the civil law of the country in which she lives — in India, primarily through the Anand Marriage Act and related civil statutes — rather than through a distinct religious legal code, similar in this respect to the situation in Buddhism.

Chapter 8: Side by Side

Tradition	Marriage Framed As	Wife's Financial Right	Wife's Divorce Path
Hinduism	Sacred duty (dharma), reformed by modern statute	Streedhan (personal property/gifts)	Statutory divorce under modern civil law (e.g., Hindu Marriage Act)
Buddhism	Civil/social bond, ethically blessed	Governed by local civil law, not distinct religious law	Governed by local civil law
Judaism	Contract (ketubah)	Ketubah settlement; support during marriage	Requires husband's get; reform efforts address refusal (agunah)
Christianity	Covenant / sacrament	Varies by era and denomination; historically limited, now equal under civil law	Varies: annulment (Catholic) to divorce for cause (most Protestant/Orthodox)
Islam	Contract, with mahr as a condition	Mahr (hers alone); nafaqa (maintenance); retains own property/earnings	Khula (wife-initiated) or judicial divorce for cause
Sikhism	Spiritual union of equals (Anand Karaj)	Governed by local civil law (e.g., Anand Marriage Act in India)	Governed by local civil law

A few patterns emerge from this comparison. Judaism and Islam both formalized a wife's financial rights through binding contracts remarkably early, though each also developed a distinct hurdle on the divorce side — the agunah problem in Judaism, and the asymmetry between talaq and khula in classical Islamic law — that reform movements within each tradition continue to address. Hinduism, Buddhism, and Sikhism, by contrast, historically left much of this territory to family custom or dharmic duty rather than binding contract, which has made modern civil legislation — rather than internal religious reform alone — the primary vehicle for expanding wives' legal rights in Hindu-, Buddhist-, and Sikh-majority societies. Christianity sits somewhere between the two patterns: it produced relatively little distinct financial machinery for wives within canon law itself, while its stance on divorce has ranged from the

most restrictive of any tradition surveyed here (traditional Catholic teaching) to among the most permissive (many Protestant traditions).

Chapter 9: A Shared, Ongoing Conversation

Across all six traditions, the questions this book raises are not settled history but live debates. Reformist and traditionalist voices exist within Hinduism, Judaism, Christianity, Islam, and Sikhism alike, each drawing on different readings of the same scriptures and legal traditions to argue for different conclusions about what a wife is owed and what obligations a marriage properly creates. Modern civil law has, in nearly every tradition surveyed, been the primary force expanding wives' rights beyond what classical religious law specified on its own — though in several cases, most notably Jewish and Islamic marriage contracts, religious law itself was already doing some of that protective work centuries before comparable protections existed in secular law.

Conclusion

No single tradition surveyed here offers a simple, uncontested answer to the question of what rights a wife holds within marriage — and none of them is static. What this comparison offers instead is a map of the terrain: the specific mechanisms — dower, dowry, contract, covenant, custom, statute — that different traditions have used to answer a question every human society has had to answer in some form, and the reform conversations, still underway in every one of them, about whether those mechanisms answer it well enough.